



Bureau of Experts at the Council of Ministers
Official Translation Department

Law of Provinces

Royal Order No. A/92
March 2, 1992

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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No.: A/92

Date: 27/8/1412H

**With the help of Allah,
We, Fahd bin Abdulaziz Al Saud,
King of the Kingdom of Saudi Arabia,**

Pursuant to the dictates of public interest;

Seeking to achieve the State's objectives by improving the performance of government agencies in all provinces in line with State development;

Have ordered the following:

First:

The Law of Provinces, attached herewith, shall be approved.

Second:

This Law shall take effect within one year from the date of its publication.

Third:

This Law shall be published in the Official Gazette.

**Signed
Fahd bin Abdulaziz**

Law of Provinces

Article 1

This Law aims at improving administrative performance and development in the Kingdom's provinces. It also aims at maintaining security and order, and safeguarding citizens' rights and freedoms in accordance with Sharia.

Article 2

The organization of the Kingdom's provinces and the seat of the governorate of each province shall be specified by royal order upon the recommendation of the Minister of Interior.

Article 3

Each province shall administratively consist of a number of counties, townships, and districts with due consideration to factors of demography, geography, security, environment and transportation routes. The organization of a county shall be effected by a royal order upon the recommendation of the Minister of Interior. The establishment of townships and districts and their affiliation shall be determined pursuant to a decision by the Minister of Interior upon the recommendation of the governor of the province.

Article 4

Each province shall have a governor with the rank of "Minister". He shall also have a vice-governor of "Grade Excellent" who shall assist him in his duties and act on his behalf during his absence. The governor and vice-governor shall be appointed and relieved from office by royal order, upon the recommendation of the Minister of Interior.

Article 5

The governor of the province shall be accountable to the Minister of Interior.

Article 6

The governor and vice-governor, prior to assuming their duties, shall take the following oath before the King:

"I swear to Allah Almighty to be loyal to my Religion, then to my King and Country. I swear not to reveal any of the State's secrets, to protect its interests and laws, and to discharge my duties with honesty, integrity, sincerity, and fairness".



Article 7

The governor of each province shall assume the administration of the province according to the public policy of the State and in accordance with the provisions of this Law as well as other laws and regulations. In particular, he shall:

- a) maintain security, order and stability, and take necessary measures in accordance with the laws and regulations;
- b) execute final judicial judgments;
- c) safeguard rights and freedoms of individuals, refrain from any action affecting such rights and freedoms except within the limits of Sharia and the law;
- d) promote social, economic and urban development of the province;
- e) promote the development of public services in the province;
- f) manage counties, townships, and districts, and oversee the work of the governors of counties, administrators of townships, and chiefs of districts, and ascertain their efficiency in performing their duties;
- g) protect and prevent infringement on State property and assets;
- h) oversee government agencies and their employees in the province to ensure proper performance of their duties, taking into consideration their affiliation with various ministries and agencies;
- i) have direct contact with ministers and heads of agencies and review the affairs of the province with the aim of improving the performance of the agencies affiliated with them. The Minister of Interior shall be informed of the same; and
- j) submit annual reports to the Minister of Interior on the efficiency of public services and other affairs of the province as specified by the Implementing Regulations of this Law.

Article 8

An annual meeting, attended by the governors of provinces and presided over by the Minister of Interior, shall be held to review the affairs of the provinces. A report to this effect shall be brought before the Prime Minister by the Minister of Interior.

Article 9

Heads of counties and administrators of townships shall meet at least twice a year to review the affairs of the province. The meetings shall be presided over by the governor of the province, who shall submit a report thereon to the Minister of Interior.



Article 10

- a) Upon the recommendation of the Minister of Interior, one deputy or more shall be appointed to every province with a rank not lower than “Grade 14”, pursuant to a resolution by the Council of Ministers.
- b) Every county shall have a governor of a rank not lower than “Grade 14”, appointed pursuant to an order by the Prime Minister, upon the recommendation of the Minister of Interior. The county shall have a deputy with a rank not lower than “Grade 12”, appointed pursuant to a decision by the Minister of Interior, upon the recommendation of the governor of the province.
- c) Every township shall have an administrator of a rank not lower than “Grade 8”, appointed pursuant to a decision by the Minister of Interior, upon recommendation of the governor of the province.
- d) Every district shall have a chief of a rank not lower than “Grade 5”, appointed pursuant to a decision by the governor of the province, upon the recommendation of the governor of the county.

Article 11

Governors of provinces, heads of counties, administrators of townships, and chiefs of districts shall reside within the areas of their respective appointments. They may not leave their respective areas without the permission of their immediate superiors.

Article 12

Heads of counties, administrators of townships, and chiefs of districts shall assume their duties within their jurisdiction and powers.

Article 13

Heads of counties shall administer their counties within the jurisdiction provided for in Article 7, excluding paragraphs (f), (i), and (j). They shall monitor the administrators of townships and chiefs of districts affiliated with them, and ascertain their competency in performing their duties. They shall provide the governor of the province with periodic reports about the efficiency of public services and other affairs of the county, as specified by the Implementing Regulations of this Law.

Article 14

Each ministry or government agency providing services in the province shall appoint for its agencies in the province a head with a rank not lower than “Grade 12”. He shall report directly to the headquarters, and coordinate his work with the governor of the province.

Article 15

For each province a council called the “provincial council” shall be established, and its seat shall be at the headquarters of the governorship of the province.



Article 16

The provincial council shall be composed of:

- a) governor of the province, chairman;
- b) vice-governor of the province, vice- chairman;
- c) deputy governor and heads of counties;
- d) heads of government agencies in the province to be specified by a resolution issued by the Prime Minister upon the recommendation of the Minister of Interior; and
- e) a minimum of 10 citizens known for their knowledge, expertise, and specialization to be appointed by an order issued by the Prime Minister upon nomination by the governor of the province and the approval of the Minister of Interior. Their term of membership shall be four renewable years.

Article 17

A council member shall be:

- a) a Saudi national by descent and upbringing;
- b) a person well known for uprightness and competence;
- c) not less than 30 years of age; and
- d) a resident of the province.

Article 18

A member may submit written proposals to the chairman of the provincial council on matters within the council's jurisdiction. Each proposal shall be included by the chairman in the council's agenda for review and consideration.

Article 19

A member of the provincial council may not attend deliberations of the council or its committees if there is an issue of conflict of interest.

Article 20

If an appointed member wishes to resign, he shall submit a request to that effect to the Minister of Interior through the governor of the province. His resignation shall not be considered valid until approved by the Prime Minister upon the recommendation of the Minister of Interior.

Article 21

In cases other than those stipulated in this Law, an appointed member may not be dismissed during his term except by an order issued by the Prime Minister upon the recommendation of the Minister of Interior.

Article 22

When a position of any appointed member becomes vacant for any reason, a replacement shall be appointed within three months from the date of vacancy. The new member shall serve the remainder of his predecessor's term in accordance with Article 16(e) of this Law.



Article 23

The provincial council shall have the power to review matters to improve the quality of services in the province, especially with regards to:

- a) determining the needs of the province and proposing their inclusion in the State's development plan;
- b) prioritizing useful projects and proposing their inclusion in the annual State budget;
- c) reviewing urban planning for the province's cities and towns and pursuing their implementation after endorsement thereof; and
- d) pursuing the implementation of the development plan and budget with regards to the province, and coordinating with regards thereto.

Article 24

The provincial council may submit to the Minister of Interior proposals for projects of public interest within the province and encourage citizens to participate therein.

Article 25

The provincial council shall be prohibited from considering any matter beyond its jurisdiction as provided for by this Law; otherwise, its decisions shall be considered null and void. The Minister of Interior shall issue a decision to this effect.

Article 26

The provincial council shall convene every three months in ordinary sessions upon an invitation by its chairman. If he deems it necessary, the chairman may call the council to an extraordinary meeting.

A session may include one or more meetings which are held upon a single invitation. A session may not be concluded until all issues on the agenda are reviewed and discussed.

Article 27

Members mentioned in Article 16(c and d) of this Law shall attend meetings of the provincial council as an official duty. They shall attend in person or designate a substitute in their absence. As for the members mentioned in paragraph (e) of said Article, inexcusable absence from two consecutive sessions shall be grounds for dismissal from the council. In this case, a dismissed member may not be re-appointed within two years following the date of dismissal.

Article 28

Meetings of the provincial council shall not be valid unless attended by at least two thirds of its members. Its decisions shall be passed by absolute majority vote of council members. In case of a tie, the chairman shall cast the deciding vote.

Article 29

The provincial council, if needed, may form ad hoc committees to review any matter within its powers. It may seek the assistance of experts and specialists. It may also invite others to attend council meetings and participate in discussions in a non-voting capacity.

Article 30

The Minister of Interior may call the council to convene under his chairmanship anywhere he deems suitable. He shall also chair any meeting he attends.

Article 31

The provincial council may not convene without a call from its chairman or vice-chairman, or an order by the Minister of Interior.

Article 32

The chairman of the council shall submit a copy of the decisions to the Minister of Interior.

Article 33

The chairman of the provincial council shall inform ministries and government agencies of relevant council decisions.

Article 34

Ministries and government agencies shall take into consideration decisions passed by the provincial council with regards to Article 23(a and b) of this Law. If a ministry or a government agency decides not to accept a decision of the provincial council, it shall submit the reasons therefor to the provincial council. If the provincial council is not convinced of the reasons given by the ministry or agency, it shall refer the matter to the Minister of Interior to bring it before the Prime Minister.

Article 35

Each ministry or agency that provides services in a province shall inform the provincial council of projects allocated for the province in the budget immediately after its promulgation. It shall also inform the council of allocations for the province in the development plan.

Article 36

Each minister or head of an agency may seek the opinion of the provincial council on any matter pertaining to his powers in the province. The council shall provide its opinion in this regard.

Article 37

The Council of Ministers, upon the recommendation of the Minister of Interior, shall set the remuneration of the chairman of the provincial council and its members, taking into account the costs of transportation and accommodation.

Article 38

The provincial council may not be dissolved except by an order of the Prime Minister upon the recommendation of the Minister of Interior, provided that members of the new council shall be appointed within three months from the date of dissolution. During this period, members mentioned in Article 16(c and d) of this Law, shall exercise the powers of the council under the chairmanship of the governor of the province.



Article 39

The provincial council shall have a secretariat at the governorship of the province to prepare its agenda, send timely invitations, record discussions carried out during meetings, count votes, prepare minutes of meetings, draft decisions, and perform the work necessary for recording council meetings and drafting its decisions.

Article 40

The Minister of Interior shall issue the necessary regulations to implement this Law.



Appendix

Amendments

September 17, 1993 (Rabi' I 30, 1414H)

Royal Order No. A/21 provides for the following:

- Amending Article 3 to read as follows:

"Each province shall administratively consist of a number of "Class A" and "Class B" counties and "Class A" and "Class B" districts, with due consideration to the factors of demography, geography, security, environmental conditions, and transportation routes. Counties shall report to the governor of the province and they shall be defined by royal order upon the recommendation of the Minister of Interior. The establishment of districts and the authorities they report to shall be determined pursuant to a decision by the Minister of Interior upon the recommendation of the governor of the province".

- Amending Article 10 to read as follows:

"A. Upon the recommendation of the Minister of Interior, one deputy or more shall be appointed to every province with a rank not lower than "Grade 14", pursuant to a resolution by the Council of Ministers.

B. Every "Class A" county shall have a head with a rank not lower than "Grade 14", appointed pursuant to an order by the Prime Minister, upon the recommendation of the Minister of Interior. The county shall have a deputy with a rank not lower than "Grade 12", appointed pursuant to a decision by the Minister of Interior, upon the recommendation of the governor of the province.

C. Every "Class B" county shall have a head with a rank not lower than "Grade 12", appointed pursuant to a decision by the Minister of Interior, upon the recommendation of the governor of the province.

D. Every "Class A" district shall have a chief with a rank not lower than "Grade 8", appointed pursuant to a decision by the Minister of Interior, upon the recommendation of the governor of the province.

E. Every "Class B" district shall have a chief with a rank not lower than "Grade 5", appointed pursuant to a decision by the governor of the province".

- Amending Article 13 to read as follows:

"Heads of counties shall administer their counties within the jurisdiction provided for in Article 7, excluding paragraphs (f), (i), and (j). They shall monitor the chiefs of districts affiliated with them, and ascertain their competency in performing their duties. They shall provide the governor of the province with periodic reports about the efficiency of public services and other affairs of the county, as specified by the Implementing Regulations of this Law".



- Amending Article 37 to read as follows:

"The Prime Minister, upon the recommendation of the Minister of Interior, shall set the remuneration of the chairman of the provincial council and its members, taking into account the costs of transportation and accommodation".

- Deleting the word "townships" and the phrase "administrators of townships" from paragraph (f) of Article 7 and deleting the phrase "administrators of townships" from Articles 9, 11, and 12.
- Amending paragraph (c) of Article 16 to read as follows:
"c) deputy governor;".
- Adding a new article to be numbered 41 to read as follows:
"This Law may only be amended in the same manner of its promulgation".